



POLICE DEPARTMENT

July 27, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202200672 (Incident Date: February 2, 2022) regarding Police Officer Richard Defrancesco, Tax No. 965033 (DADS No. 2023-28307)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202200672, pertaining to Police Officer Defrancesco. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Defrancesco would be detrimental to the Police Department's disciplinary process.

In this matter, PO Defrancesco and his partner were called to a domestic disturbance at a residence. Upon arrival, PO Defrancesco was met by an intoxicated and uncooperative individual. Police Officer Defrancesco uttered a profane word twice during his interactions with the individual. However, notwithstanding the fact that Police Officer Defrancesco's use of profanity was unprofessional and improper, his use was conversational in nature and not intended to be discourteous. Thus, a mitigated penalty is warranted.

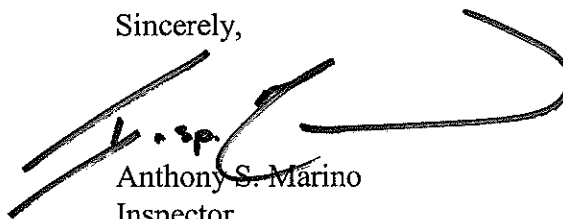
Additionally, Police Officer Defrancesco admitted there was no offense for which to arrest the individual when he threatened to do so. However, it is obvious that Police Officer Defrancesco made the threat to arrest as a tactic to discourage the individual from engaging in any negative interactions which may exacerbate a domestic dispute. The available BWC video evidence suggests that Police Officer DeFrancesco did not intend to commit an act of misconduct, but was rather attempting to get the intoxicated, agitated and uncooperative individual to calm down. It is undisputed that the individual admitted that he consumed a pint of vodka prior to the Police Officer Defrancesco's arrival, which hindered Police Officer Defrancesco's attempts to gather information necessary to address the individual's domestic violence complaint. Here, the totality of the circumstances fully support the imposition of a mitigated penalty.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and issue Police Officer DeFrancesco a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days.

Sincerely,

A handwritten signature in black ink, appearing to read "A. S. Marino", is written over the printed name. The signature is stylized with a large, sweeping loop at the end.

Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

August 1, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Richard DeFrancesco, Tax No.: 965033
CCRB Case No. 202200672
DADS No.: 2023-28307
Incident Date: February 2, 2022

Commissioner Caban:

I am writing in response to the letter from Inspector Anthony S. Marino, dated July 27, 2023, informing the Civilian Complaint Review Board (hereinafter "CCRB") of your intent to retain jurisdiction over the above-cited case and issue Police Officer DeFrancesco a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days. Pursuant to Paragraph 8 of the 2012 Memorandum of Understanding, "The Police Commission shall retain in all respects the authority and discretion to make final disciplinary determination."

It is undisputed that PO DeFrancesco used profanity toward § 87(2)(b) without police necessity and threatened to arrest him without police authority when he responded to § 87(2)(b) 911 call for assistance because his domestic partner attacked him. It is also undisputed that § 87(2)(b) and § 87(2)(b) were intoxicated as they both admitted to drinking and it was evidenced from the recorded footage.

Based on the review of the evidence, if the CCRB were to resolve the case today, and the respondent was to accept responsibility for the misconduct as described above and in the charging document, the CCRB would offer the same penalty due to the totality of the circumstances. As such, the CCRB agrees with the Scheduled "B" Command Discipline with the penalty of forfeiture of five (5) vacation days.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 1, 2023

Re: CCRB Case No. 202200672 (Incident Date: February 2, 2022) regarding Police Officer
Richard Defrancesco, Tax No. 965033 (DADS No. 2023-28307)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 1, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Richard Defrancesco, and agrees with the CCRB's current position, for the reasons expressed in my July 27, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Defrancesco be issued a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days, in connection with this matter.

Yours truly,


Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office

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